

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

I,

**DECLARATION OF FRANCISCUS
DYLAN ROSARIO IN SUPPORT OF
MOTION FOR LEAVE**

Franciscus Dylan Rosario, declare as follows:

1. I am the Plaintiff in this action, representing myself in pro per. I have personal knowledge of the facts set forth in this declaration, and if called as a witness, I could and would testify competently to them.
2. This declaration is submitted pursuant to California Rules of Court, rule 3.1324, in support of my Motion for Leave to File the Second Amended Complaint (SAC).
3. **What amendments the proposed SAC makes:** The proposed SAC restructuring refines the allegations to focus exclusively on extrinsic fraud. Specifically, the amendments add:

- Allegations detailing the 883-day period of silence between August 18, 2022, and January 17, 2025, during which prior defense counsel raised no authenticity challenge (SAC ¶¶ 29–33, 68–80).
- Allegations regarding the May 4, 2023 substitution of counsel and institutional file transfer without production history (SAC ¶¶ 34–39).
- The specific April 16, 2025 “provided by Dolan” admission on the trial record (SAC ¶¶ 58–63).
- Agency liability allegations asserting CSAA Insurance Exchange directed, funded, and ratified the litigation conduct (SAC ¶¶ 48–57, 138–143, 141A).
- A Seventh Cause of Action for constructive fraud under Civ. Code § 1573, pleaded in the alternative to Counts 2 and 3, using the same April 16, 2025 admission and the February 28, 2025 officer-of-the-court reliance ruling as discovery anchors (SAC ¶¶ 157–165; Hr’g Tr. Feb. 28, 2025, pp. 291–294; RT 7, p. 213, ll. 13–15).
- Express reliance on Evidence Code section 623 (estoppel by silence) and Evidence Code section 1414(b) (authentication by acquiescence) (SAC ¶¶ 104–105). The proposed SAC deletes allegations that might be construed as challenging intrinsic trial advocacy or seeking appellate review of the underlying verdict.

4. **Why the amendments are necessary and proper:** The amendments are necessary to conform the pleading to the precise evidentiary timeline and admissions made on the record in the underlying case. They are proper because they streamline the legal theories, clarifying that this is an independent equitable action targeting extrinsic fraud (conduct operating outside the trial), thereby allowing the Court to adjudicate the actual controversy under the correct standard.
5. **When facts giving rise to the amendments were discovered:** The primary facts giving rise to these claims were discovered between January 17, 2025 (when Motions in Limine Nos. 6 and 17 were filed) and April 16, 2025 (when defense counsel admitted the trial evidence was “provided by Dolan”). The February 28, 2025 hearing transcript (officer-of-the-court and burden-shift rulings) became a central discovery event for the constructive-fraud theory when

I parsed the certified hearing record in early 2026 alongside the April 16 admission. The necessity of the specific agency allegations and estoppel framing became clear to me during post-filing legal research and parsing of the certified trial transcripts in early 2026.

6. **Why the request was not made earlier:** The original Complaint and First Amended Complaint were filed to preserve my rights. The comprehensive review of the underlying trial transcripts, coordination of the timeline of the institutional file transfer, and proper integration of the Kougasian extrinsic-fraud framework required substantial time and diligence, culminating in the drafting of this refined Second Amended Complaint.
7. Attached hereto as **Exhibit 1** is a true and correct copy of the proposed Second Amended Complaint.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on _____, 2026, at Rohnert Park, California.

FRANCISCUS DYLAN ROSARIO

Dated: April 18, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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